

4-1000 Nonconforming Structures and Uses

4-1001 Principles of Construction as Applied to Nonconforming Structures and Uses

- A. In recognition of the broadly accepted policy that nonconforming uses and structures should be brought to conforming status as speedily as justice will permit, and favoring the reasonable regulation of nonconforming uses and structures to minimize their adverse impacts on current comprehensive zoning schemes and the community, this Article shall be strictly construed against the continuation or expansion of nonconformity in Boulder County.

4-1002 Nonconforming Structures

- A. A nonconforming structure is any existing structure which does not conform to the structure regulations of this Code for the zoning district in which such nonconforming structure is located, as a result of either (1) the adoption or amendment of this Code, or (2) a final county administrative or judicial decision precluding Boulder County from enforcing this Code specific to a structure on the basis of estoppel, laches, or waiver.
- B. A nonconforming structure may continue to be occupied, except as otherwise provided for in this Section.
- C. A nonconforming structure may not be altered, repaired, or enlarged in any way which would increase the degree of nonconformity with respect to the setback or height regulations of this Code:
1. For purposes of this Section, an increase in the degree of nonconformity shall be any alteration which adds to the floor area or height of the portion of the structure which violates this Code.
 2. This restriction may be waived if the Building Official determines that any such alteration, repair, or enlargement is necessary to rectify a hazardous health or safety situation, or to comply with the public health or safety requirements of another governmental entity having lawful jurisdiction over the structure.
 3. Agricultural structures, either singly or cumulatively, legally constructed which were over 25,000 square feet (or 35,000 square feet in a community service area) as of October 18, 1994, may be altered, repaired, or enlarged provided the total square footage of the structures on a parcel is not increased.
 4. Installation of a flush roof-mounted or building integrated accessory solar energy systems shall not be considered an increase in the degree of nonconformity, provided it meets the specifications in section 4-514 or 4-516.
- D. A nonconforming structure which has been damaged or destroyed by causes outside the control of the property owner or their agent, may be restored to its original location, floor area, and height, provided that such restoration complies with the current provisions of the Boulder County Building Code.
1. Such restoration must be commenced within six months after the date on which the nonconforming structure was damaged or destroyed and completed within one year after the date on which the restoration was commenced.
 - a. These times may be extended for a reasonable period, if approved by the County Commissioners at a public hearing upon a showing of extraordinary circumstances by the property owner or their agent.
 2. The provisions of this Section 4-1002 (D) shall not apply to Substantial Improvements to structures in the Floodplain Overlay District as provided for in Section 4-400 of this Code.
 3. Restoration meeting the requirements of this provision are not required to undergo a Site Plan Review. (See Article 4-802 (B) (3))

4-1003 Nonconforming Uses

- A. A nonconforming use is any existing use which does not conform to the use regulations of this Code for the zoning district in which such nonconforming use is located, as a result of either
 1. the adoption or amendment of this Code, or
 2. a final administrative or judicial decision precluding the County from enforcing this Code specific to a use on the basis of estoppel, laches, or waiver.
 - a. Uses are not considered nonconforming due to inadequate parking.
 - b. Uses which fall within Section 4-1003.A.2., above shall not be eligible to apply for a special use permit for a Use of Community Significance Section 4-504.
- B. Except as otherwise provided in this Section, a nonconforming use may be continued and normal or routine maintenance of a structure containing a nonconforming use shall be permitted. Normal or routine maintenance shall include any maintenance or repair which does not impermissibly enlarge or alter the structure containing a nonconforming use under Section 4-1003.C., below.
- C. Enlargement or Alteration of a Nonconforming Use
 1. The right to continue a nonconforming use terminates immediately when the nonconforming use is enlarged, expanded, extended, or altered in any of the following ways, and the property owner does not successfully pursue any of the options specified in Section 4-1003.H. within 30 calendar days after the Director provides written notification of an alleged illegal enlargement or alteration to the owner.
 - a. Addition of a new structure containing or accessory to the nonconforming use;
 - b. Enlargement or alteration of a structure containing or accessory to the nonconforming use, including but not necessarily limited to an increase in floor area, an increase in height, or any other alteration or improvement in excess of normal or routine maintenance of the structure;
 - c. Enlargement or alteration in the land area occupied by the nonconforming use, unless the basic nature of the use, at the time it became nonconforming, clearly indicated or contemplated such an increase or alteration; or
 - d. Any other enlargement or alteration of the nonconforming use which has the effect or threatened effect of creating a hazard or nuisance on or off the property, of adversely affecting the character of the neighborhood, or of intensifying the use of the land or its need for services.
 - e. Removal or replacement of any structural member in a use for which the County is precluded from enforcing this Code specific to use on the basis of estoppel, laches, or waiver.
 2. An impermissible enlargement or alteration shall not include the following:
 - a. a change of ownership of the property;
 - b. an alteration or expansion which the Building Official determines is necessary to rectify a hazardous health or safety situation or to comply with the public health or safety requirements of another governmental entity having lawful jurisdiction over the structure;
 - c. an extension of the nonconforming use within the structure containing the use, provided that such extension is not accompanied by an alteration of the structure falling within category (b), above;
 - d. the addition of a solar energy system to a structure containing a nonconforming use provided it meets the specifications in Articles 4-514 or 4-516; or
 - e. any replacement or upgrading of outmoded or worn equipment or supplies, provided that such activity does not fall within category Section 4-1003.C.1.d., above.
 3. Owners of legal building lots containing agricultural uses which have become nonconforming as a result of adoption or amendment of this Code, may restore, modify, and maintain existing conforming structures, and may construct new conforming structures, provided such structures are directly related to the agricultural use, and provided the use is not enlarged or altered in any other way.
- D. Change of a Nonconforming Use
 1. A nonconforming use may be changed only to a use which is conforming in the zoning district in which the use is located.
 2. Any change of a nonconforming use to any other use shall operate immediately to terminate the right to continue the nonconforming use. Thereafter, the property shall be used only in conformity with the use provisions of its zoning district.

E. Destruction of a Structure Containing a Nonconforming Use

1. A structure containing a nonconforming use shall be deemed destroyed when either greater than 50 percent of its floor area, or greater than 50 percent of its actual value (as determined by the Boulder County Assessor) is destroyed.
2. The right to continue a nonconforming use terminates immediately when the structure containing that use is destroyed by an intentional act of the property or structure owner or their agent.
3. In all other cases, when a structure containing a nonconforming use is destroyed, the structure may be restored, and the nonconforming use may be reestablished.
 - a. Restoration of the structure must be commenced within six months after the date on which the nonconforming structure was destroyed and completed within one year after the date on which the restoration was commenced.
 - b. These times may be extended for a reasonable period, if approved by the County Commissioners at a public hearing upon a showing of extraordinary circumstances by the property owner or their agent.
4. The provisions of this Section 4-1003.E. shall not apply to Substantial Improvements to structures in the Floodplain Overlay District as provided for in Section 4-400.

F. Damage to a Structure Containing a Nonconforming Use

1. The right to continue a nonconforming use terminates immediately when the structure containing that use is damaged by an intentional act of the property or structure owner or their agent.
2. In all other cases, when a structure containing a nonconforming use is damaged, the structure may be restored, and the nonconforming use may be reestablished.
 - a. Restoration of the structure must be commenced within six months after the date on which the nonconforming structure was damaged and completed within one year after the date on which the restoration was commenced.
 - b. These times may be extended for a reasonable period, if approved by the Board of County Commissioners at a public hearing upon a showing of extraordinary circumstances by the property owner or their agent.
3. The provisions of this Section 4-1004.F. shall not apply to Substantial Improvements to structures in the Floodplain Overlay District as provided for in Section 4-400.
4. Restoration meeting the requirements of this provision are not required to undergo a Site Plan Review. (See Article 4-802.B.3.)

G. Abandonment of a Nonconforming Use

1. The right to continue a nonconforming use terminates as soon as the use is abandoned through the discontinuance of the use for an uninterrupted period of six months or more, as a result of causes within the control of the property owner or their agent.
 - a. Discontinuance of the use shall be a complete cessation of all activity on the property related to the use as determined in relationship to the nature and history of the nonconforming use, based upon available public information on the use.
 - b. If the nonconforming use is a seasonal use, the use shall be terminated if it is discontinued for an entire single season based upon the history and nature of the use.
2. Any nonconforming use may be abandoned in less than six months or a season, as applicable, if the property owner expressly states an intent to abandon the use, or engages in action which unambiguously expresses an intent to abandon.

H. Notice of Termination in the Event of Unlawful Enlargement or Alteration of a Nonconforming Use, Change of Use, Abandonment of a Nonconforming Use, or Destruction or Damage to a Structure Containing a Nonconforming Use

1. In the event that the Director receives information upon which a determination is made that the right to continue a nonconforming use has been or may have been terminated by operation of Section 4-1003, the Director shall provide a written notification of this determination by first class mail to the property owner, and to the parcel address, all as shown on the records of the Boulder County Assessor. The property owner shall have 30 calendar days after the date of the notification within which to provide evidence satisfactory to the Director to show that the determination is in error, to abate the illegal enlargement or alteration, to apply for approval of a special use or other applicable approval under this Code, or to file an appeal of the Director's determination to the Board of County Commissioners. In any appeal, the property owner shall have the burden to show that the right to continue the nonconforming use was not terminated according to the applicable provisions of this Article, when judged in light of the history and nature of the use and the circumstances of the alleged termination.
2. Nothing in this Section shall alter or diminish the Director's right to take enforcement action against the unlawful continuation of a nonconforming use terminated by operation of Section 4-1003 hereof, as set forth in 30-28-124, C.R.S., as amended, and Article 17 of this code. Moreover, except in the case of an illegal enlargement or alteration for which the owner shall be provided with a 30 day opportunity to abate, any failure by the Director to provide a notification of a determination of termination as provided for in this Section shall in no way entitle the property owner to continue or resume a nonconforming use terminated by operation of this Section 4-1003(H).

4-1004 Recognition of Nonconforming Uses

- A. A nonconforming use may be recognized as a conforming use if:
1. The use was made nonconforming pursuant to Section 4-1003.A.1., and receives special use review approval as a Use of Community Significance under Sections 4-504.H and 4-602.E. of this Code, or
 2. The use is nonconforming pursuant to 4-1003.A.2., and receives special use approval as a temporary use under Section 4-600.A. In addition to satisfying the special use criteria of Section 4-601, such a use may receive special use approval only if it meets the following requirements, to assure that these nonconforming uses are brought into conformity as quickly as justice may permit:
 - a. The use is required to totally cease, or to be changed to a conforming use, within a reasonable time certain as determined by the Board of County Commissioners through the special use review process, not to exceed 30 years.
 - b. During the time certain when the use is allowed to exist as a temporary special use, the property owner grants a conservation easement to the County to assure that no future expansion of the use or its associated structures occurs on the property beyond that approved in the special use. The conservation easement will also require that at the expiration of the temporary use period established in Subsection 4-1004.A.2.a., the temporary special use shall cease, and the property's use and structures shall be made to conform to the zoning districts requirements and in accordance with any specific requirement of the special use review and conservation easement.
 - c. Approval of the use as a temporary special use will result in some measurable decrease in one or more of the adverse land use impacts associated in the nonconforming use (such as in traffic, noise, or adverse visual impact).
 3. The use was a legal residential use when it became nonconforming pursuant to Subsection 4-1003.A.1. and receives Limited Impact Special Review use approval under Section 4-600.A., and, in addition, the owner/applicant agrees to permanently deed restrict the approved special use as affordable housing under the adopted standards of the BOCC based upon the recommendation and policies of the Boulder County Housing Authority.
 - a. No increase in density is permitted through this approval.
 - b. Minor expansions to the use may be allowed through the limited impact special use process, so long as the proposed use results in some measurable decrease in one or more of the adverse land use impacts associated with nonconforming use (such as in traffic, noise, or adverse visual impact) and so long as current County Building Code requirements are met.
 4. The nonconforming use is changed to any other conforming use recognized under this Code.

4-1100 Rezoning (Zoning Map Amendments)

4-1101 Initiation of Amendments

A. Initiation of Map Amendments

1. Map amendments may be initiated by the Board of County Commissioners, the Planning Commission, or the legal owner of any property in Boulder County.
2. Map amendments shall be reviewed and acted upon in accordance with the procedural provisions contained within Article 3 of this Code, except the following:
 - a. Comprehensive map amendments initiated by the Board of County Commissioners or Planning Commission including map amendments resulting from a text amendment to this Code. In this case, the following notification requirements may be adopted by the Planning Commission.
 - (i) The newspaper notice need not contain the name of the landowner and applicant, the proposed and existing zoning, or the general location description of the land.
 - (ii) The property need not be posted with a sign.
 - (iii) The written notice of the hearing need not be provided to the applicant.
 - (iv) A written notice of the hearing need not be mailed to all owners of interest and adjacent land owners identified in the title report.

4-1102 Standards and Conditions

- #### A. No map amendment shall be adopted by the Board of County Commissioners unless the Board has determined that:
1. a public need exists for the map amendment;
 2. the amendment is consistent with and in furtherance of the stated intent and purposes of this Code;
 3. the amendment is in accordance with the Boulder County Comprehensive Plan and any applicable intergovernmental agreement affecting land use or development;
 4. the subject property is an appropriate site for the map amendment, and is a reasonable unit of land for such reclassification;
 5. the map amendment would not have a material adverse effect on the surrounding area;
 6. the map amendment will not result in an over-intensive use of land;
 7. the map amendment will not have a material adverse effect on community capital improvement programs;
 8. the map amendment will not require a level of community facilities and services greater than that which is available;
 9. the map amendment will not result in undue traffic congestion or traffic hazards;
 10. the map amendment will not cause significant air, water, or noise pollution;
 11. the map amendment will not permit the use of any area designated within the Boulder County Comprehensive Plan for the extraction of commercial mineral deposits in a manner which would interfere with the present or future extraction of such deposit by an extractor to any greater extent than under the present zoning of the property;
 12. it must be demonstrated that any structures to be built on the property will not be affected by geologic hazards if they exist; and
 13. the map amendment will not otherwise be detrimental to the health, safety, or welfare of the present or future inhabitants of Boulder County.

4-1200 Board of Adjustment

4-1201 Appeals to the Board of Adjustment

- A. Appeals to the Board of Adjustment may be taken by any person aggrieved by any decision of the Community Planning & Permitting Director or County Engineer made in the course of the administration or enforcement of Article 4 or any related provision of this code.
- B. An application for an appeal must be made within 30 days after the Director or County Engineer makes a written decision on the matter being appealed. The 30 days shall start to run on the third day after the date of mailing of the decision to the last known address of the person concerning whom the decision is made. If not appealed to the Board of Adjustment the decision shall be final.
- C. The process for filing an appeal and specifics regarding the public hearing before the Board of Adjustment are outlined in Article 3 of this Code.
- D. Appeals to the Board of Adjustment related to any matters under Article 12, Special Review for Oil and Gas Operations, must be specifically permitted under Article 12.
- E. Any party to a proceeding before the Board of Adjustment may appeal the Board of Adjustment's final decision under C.R.C.P. 106(a)(4).

4-1202 Standards of Review

- A. Interpretations of this Code
 - 1. In hearing an appeal of an administrative decision or interpretation, the Board of Adjustment shall consider the following:
 - a. the technical meaning of the provision being appealed;
 - b. evidence as to the past interpretation of the provision;
 - c. the principles of interpretation and rules of construction in Article 1 of this code; and
 - d. the effect of the interpretation on the intent of this Code and the implementation of the Comprehensive Plan and any applicable intergovernmental agreement affecting land use or development.
- B. Requests for a Variance from the Provisions of this Code
 - 1. The Board of Adjustment shall not grant a variance to this Code which allows:
 - a. a use in a zoning district other than those as allowed in Section 4-100 of this Code;
 - b. a variance to the minimum lot area requirements or maximum gross density;
 - c. the alteration of any definition;
 - d. a substantial modification to any planned unit development or special use allowed approved by the County Commissioners;
 - e. any increase in the base flood level;
 - f. a change in the height or yard requirements which could be obtained, or have been denied, through Special Review; or
 - g. A decrease in the spacing requirements for Marijuana Establishments under the Additional Provisions of Article 4-512.I. of this Code.
 - 2. In order to grant a variance, the Board of Adjustment shall find that the following criteria have been satisfied:
 - a. there exist exceptional or extraordinary physical circumstances of the subject property such as irregularity, narrowness, shallowness, or slope;
 - b. because of these physical circumstances, the strict application of this Code would create an exceptional or undue hardship upon the property owner;
 - c. the hardship is not self-imposed;
 - d. the variance, if granted, will not adversely affect the use of adjacent property as permitted under this code;
 - e. that the variance, if granted, will not change the character of the zoning district in which the property is located, and is in keeping with the intent of this Code and the Boulder County Comprehensive Plan; and
 - f. that the variance, if granted, does not adversely affect the health, safety, and welfare of the citizens of Boulder County and is in accordance with the Comprehensive Plan and any applicable intergovernmental agreement affecting land use or development.

3. In addition to any other procedural requirements which the Board of Adjustment may require in its duly adopted Supplemental Rules, no initial hearing on any variance application which anticipates new surface development may be held until the applicant provides a certification of compliance with Article 65.5 of Title 24, C.R.S. signed by the applicant, confirming that the applicant or its agent has examined the records of the Boulder County Clerk and Recorder for the existence of any mineral estate owners or lessees that own less than full fee title in the property which is the subject of the application, and stating whether or not any such mineral estate owners or lessees exist. If any such mineral estate owners or lessees exist, the Applicant must sign an additional certification confirming that the applicant has, at least 30 days prior to the initial public hearing on the variance, transmitted to the County and to the affected mineral estate owners and lessees the notices required by Article 65.5 of Title 24, C.R.S.
 4. In any case where information becomes known to the Community Planning & Permitting Director or the Board that an applicant has failed to provide notice of the initial public hearing on a variance as required by Article 65.5 of Title 24, C.R.S., the Board or the Director on behalf of the Board may continue, may reschedule, or may vacate the initial public hearing to allow proper notice to be provided under Article 65.5 of Title 24, C.R.S.
- C. Additional requirements for variances and appeals under Section 4-400 of this Code ("Floodplain Overlay District") are set forth in Section 4-408 and 4-409, respectively.
- D. Request for variances from Article 13 – Sign Code
1. The Board of Adjustment shall have the power to hear an appeal from a decision based on an interpretation of any provision of Article 13 denying a sign permit on grounds other than those governed by the Building Code.
 2. The Board of Adjustment may grant a variance from the height, size and/or setback limitations for any sign regulated in Article 13 when, by reason of topography, road location or elevation, or other exceptional difficulties or unique circumstances associated with the parcel on which the sign is located, the sign would not be visible or serve its intended purpose under the existing size or setback regulations.
 3. The Board of Adjustment shall not have the power to grant a variance from any other provision of Article 13.

4-1203 Expiration

- A. Unless otherwise stated in the motion made by the Board of Adjustment, all rights to permits authorized by the granting of any variance shall expire one year from the time approval for a variance is final.

4-1204 Extensions

- A. An extension of up to six months for good cause shown may be granted by the Board of Adjustment.